

The burden then shifts to Plaintiff to demonstrate a probability of prevailing on his claims. (Code Civ. Proc., § 425.16, subd. (b)(1).) The opposition must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment. (*Premier Med. Mgmt. Systems, Inc. v. California Ins. Guar. Ass'n* (2006) 136 Cal.App.4th 464, 476.) Plaintiff failed to submit an opposition. Accordingly, Plaintiff failed to demonstrate a probability of prevailing.

Pursuant to Code of Civil Procedure § 425.16(c), a defendant who prevails on a special motion to strike is entitled to recover their attorney's fees and costs.

CASE #	CASE NAME	HEARING NAME
CVRI2600117	SMITH VS RIVERSIDE UNIFIED SCHOOL DISTRICT	DEMURRER AND MOTION TO STRIKE

Tentative Ruling: Hearing is vacated as moot.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2600253	MALHOTRA VS RIVIAN AUTOMOTIVE, INC.	MOTION TO COMPEL ARBITRATION

Tentative Ruling: Defendant Rivian Automotive, Inc.'s Motion to Compel Arbitration is denied.

Defendant's request for judicial notice of Plaintiff's Complaint is granted.

WAIVER

Here, Defendant has filed an answer to the Complaint and asserted the arbitration clause as an affirmative defense. (See Answer filed March 26, 2026; First Amended Answer filed April 23, 2026.) A party desiring to pursue arbitration must exercise its right to arbitration by filing a petition under Code of Civil Procedure section 1281.2 or by raising the issue as an affirmative defense in its answer. (*Sargon Enters., Inc. v. Browne George Ross LLP* (2017) 15 Cal.App.5th 749, 767-768.) A delay in seeking enforcement of the arbitration agreement may constitute a waiver. (*Gunderson v. Superior Court* (1975) 46 Cal.App.3d 138, 144, disapproved on other grounds by *Doers v. Golden Gate Bridge etc. Dist.* (1979) 23 Cal.3d 180.) Nevertheless, the right to compel arbitration is not automatically waived. Here, Defendant has not waived its right to compel arbitration.

FEDERAL ARBITRATION ACT ("FAA")

Here, the question of whether FAA should apply is not subject to debate in this case. When the underlying agreement relied upon to compel arbitration evidences transactions involving commerce, as defined by the Federal Arbitration Act (9 U.S.C. §1 et seq.), federal law governs the interpretation of the agreements. (*Goldman v. KPMG*,